

c. 26, s. 9, wills made on or after January 1, 1838, whether of real or personal estate, must be executed and attested with the special solemnities there mentioned.

2. **Principle of rejecting declarations not testamentary in respect of wills.**—To trace the operations of these enactments we must bear in mind that the absolute owner of property combines in himself both the legal and equitable interest, and when the legislature enacts that no devise or bequest of property shall be valid without certain ceremonies, a testator cannot by an informal instrument affect the equitable,
[*58] any more than the legal, estate, for the one is a *con-

Brown, 12 Md. 87; Lomax v. Ripley, 3 Sm. & Gif. 48; Bailey v. Bailey, 8 Ohio, 239. An executor is *primâ facie* a trustee for the next of kin. Hays v. Jackson, 6 Mass. 153; Paup v. Mingo, 4 Leigh, 163; Carson v. Carson, 6 Allen, 397; Tinnin v. Womach, 1 Jones Eq. 135. A trust may be established in an absolute bequest by showing that the legatee received it on promise to testator to provide for a third person out of it. Towles v. Burton, Rich. Eq. Cas. 146; 24 Am. Dec. 409; Owing's case, 1 Bland's Ch. 370; 17 Am. Dec. 311; Thomson v. White, 1 Dall. 424; 1 Am. Dec. 252; Barrell v. Hanrick, 42 Ala. 60; De Laurencel v. De Boom, 48 Cal. 581; but see Lantry v. Lantry, 51 Ill. 458; 2 Am. Rep. 310; Hoge v. Hoge, 1 Watts, 163; 26 Am. Dec. 52. Or if words elsewhere in will showed it. Major v. Herndon, 78 Ky. 123. A trustee cannot continue a trust by his will. Fonda v. Penfield, 56 Barb. 503. From will and codicil together may establish trust, and executors may be considered the trustees. Ward v. Ward, 105 N. Y. 68. No fixed or certain form of words necessary. Blake v. Dexter, 12 Cush. 559; Cockrill v. Armstrong, 31 Ark. 580. Trust, though in ambiguous terms, will be sustained. Shepard v. Gassner, 41 Hun, 326. Evident intention is sufficient; Hoxie v. Hoxie, 7 Paige, 187; so if object, property, and disposition shown; Inglis v. Snug Harbor, 3 Pet. 119; and even if no trustee is named; Varner's App. 80 Pa. St. 140; Maus v. Maus, 80 Pa. St. 194; but not if donee is uncertain; Society v. Bowen, 21 Hun, 389. Trust may be opened to take in a child yet unborn. Gaboury v. McGovern, 74 Ga. 133. An executor appointed by surviving executor in place of one deceased, under a provision of the will, is also clothed with the trust estate like his predecessor. Mulford v. Mulford, 42 N. J. Eq. 68. Direction to pay net income, with power to sell, a trust. Marx v. McGlynn, 88 N. Y. 357. Devise of two equal shares to son, intending one for daughter, creates a trust. Cook v. Redman, 2 Ired. Eq. 623. To A. for life, remainder to heirs, a dry trust, executed by Statute of Uses. Phila. Trust & Safe Dep. Co.'s App. 93 Pa. St. 209. So where to wife, for "benefit of herself and children." Clarke v. Leupp, 88 N. Y. 228. Devise to trustee, with no power of control or disposition, is ineffectual, and the estate vests immediately in the beneficiary. Allen v. Craft, 109 Ind. 476. Nuncupative wills, under certain circumstances, are allowed in most of the states. A legacy to A., with "request" that on his death he leave it to B., C., and D., creates a trust in their favor. Eddy v. Hartshorne, 34 N. J. Eq. 419. A part to E. I wish placed in trust, and if she leaves no children, to be paid to her sister M. Hooper v. Bradbury, 133 Mass. 303.